

Yameen v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 22 February 2019 · WRIT - C No. - 6374 of 2019 · **Writ disposed; clause 6.5 representation directed; coercive action stayed one month.**

HEADNOTE

On a writ challenging a recovery citation of Rs. 4,07,832 founded on an alleged inflated electricity bill, the Division Bench did not examine the bill. It disposed of the petition observing that if the consumer made a representation to the Executive Engineer under Clause 6.5 of the Electricity Supply Code, 2005, it shall be considered and decided in accordance with law within one month, and stayed coercive action on the citation for that period.

FACTUAL SUMMARY

Yameen filed a writ petition in the Allahabad High Court challenging a recovery citation dated 25 January 2019 demanding Rs. 4,07,832 plus other charges. He contended that the citation was founded on an inflated electricity bill and disputed the bill itself. Counsel for the electricity department stated that the petitioner could make a representation before the Executive Engineer under Clause 6.5 of the Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing dispute — representation to Executive Engineer

HOLDING

A writ challenging a recovery citation on the ground that the underlying electricity bill is inflated is disposed of without examining the bill. The consumer may represent to the Executive Engineer under Clause 6.5 of the Electricity Supply Code, 2005; that representation shall be considered and decided in accordance with law within one month, and no coercive action shall be taken on the citation during that period. ¶ 1

PRINCIPLE TAGS

clause-6.5-statutory-remedy The Court treated Clause 6.5 of the Electricity Supply Code, 2005 as the forum for the consumer's objection to the disputed bill underlying the recovery citation, directing the Executive Engineer to decide any representation in accordance with law within one month. ¶ 1

billing-objection-to-executive-engineer-under-6.5 Counsel for the electricity department pointed to a Clause 6.5 representation before the Executive Engineer; the writ was disposed with a direction that such a representation, if made, be considered and decided within one month, with coercive recovery stayed for that period. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE RECOVERY CITATION OF RS. 4,07,832 WAS FOUNDED ON AN INFLATED BILL
Writ disposed without examining the bill; relegated to a Clause 6.5 representation. ¶ 1